

FORM 12
THE PATENTS ACT, 1970
(39 of 1970)

&

The Patents Rules, 2003

REQUEST FOR GRANT OF PATENT UNDER SECTION 26(1) & 52(2)

[See sections 26(1) & 52(2); rules 63A and 79]

1. Repeat the columns (a) to (c) if there are more than one applicant. I/We¹.....
.....
2. Insert the name in full. Family or principal name in the beginning, if the applicant is a natural person. (a).².....
.....
(b).³.....
.....
3. Insert the complete address including postal code and state and/or country. (c).⁴.....
.....
4. Nationality of the person. (i) hereby declare :
that I/We made opposition under section 25(3) before the Controller or a petition under Section 64 of the Act before the Appellate Board or High Court of ⁵.....
.....
and the details of the patent and the opposition for the petition are given below :
6. Name, address and nationality of the true and first inventor. Patent No. dated
.....Grantee / Patentee
.....Oppositio
n
Notice dated ----- or Petition No.
.....dated.....
7. Complete address including postal index number code and state along with Telephone and fax number(s). (ii) that I/We have claimed to be the true
and first inventor(s)/assignee(s)/legal
representative(s) of ⁶
8. To be signed by the applicant(s)

or his authorised registered patent agent.
.....
.....

the true and first inventor of the invention for which the said patent was granted.

(iii) that by an order in the said opposition or petition the patent was revoked/the complete specification of the patent was directed to be amended by exclusion of claims thereof.

(iv) that the Controller or Appellate Board or Court ordered to grant to me a patent in lieu of the said patent/part of the invention excluded by the amendment.

(v) that I/We submit a statement and certified copy of the order of the Controller or Appellate Board or Court in support of my application and request that a patent be granted to me in accordance with the order of the Appellate Board or Court.

9. Name of the natural person who has signed. My/Our address for service in India is : .⁷
.....
.....

Dated this day of 200

Signature ⁸

(-----)⁹
To
The Controller of Patents,
The Patent Office,
At

Note: -(a) Strike out whichever is not applicable.
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(b) For fee : See First Schedule.
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